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California Assembly Committee Advances Bill to Protect Schoolchildren From Harmful UPF

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WASHINGTON, April 10 -- The Environmental Working Group issued the following news release:

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California Assembly committee advances bill to protect schoolchildren from harmful UPF

SACRAMENTO, Calif. - On April 9 the California Assembly Education Committee voted to advance a bipartisan bill to phase out by 2032 "particularly harmful" ultra-processed food, or UPF, from school meals served in the state.

If enacted, A.B. 1264 would task state scientists to work with University of California experts on identifying UPF to ban. This work would be based on scientific research on the food's links to disease and health harms.

"Our public schools should not be serving students ultra-processed food products filled with chemical additives that can harm their physical and mental health and interfere with their ability to learn," said the bill's author, Assemblymember Jesse Gabriel (D-Encino).

The bill has bipartisan support, including from state Assembly Republican Leader James Gallagher (R-East Nicolaus) and Progressive Caucus Chair Alex Lee (D-San Jose).

"In California, Democrats and Republicans are joining forces to prioritize the health and safety of our children, and we are proud to be leading the nation with a bipartisan, science-based approach," said Gabriel.

"This new legislation will ensure that schools are serving our students the healthy, nutritious meals they need and deserve," he added.

The Environmental Working Group is cosponsoring A.B. 1264.

Health threats of UPF

Ultra-processed foods are industrially manufactured, chemically modified products often filled with harmful additives to enhance taste, texture, appearance and durability.

Experts say ultra-processed food and drinks trick people into eating more of them than they want. The products, especially soda, are engineered to evoke a desire to consume more, they say.

Scientific research links UPF to serious health harms, including cancer, cardiovascular disease, Type 2 diabetes, metabolic disorders such as Crohn's disease and fatty liver disease, reproductive and neurobehavioral harms and mental health issues.

Obesity is chief among the health problems linked to UPF. Rates of obesity

in the U.S. and globally have skyrocketed in tandem with rising UPF consumption.

"Ultra-processed foods aren't just unhealthy - they're engineered for overconsumption. Like addictive substances, they hijack the brain's reward system, making it difficult for people to cut back, even when facing serious health consequences," said Ashley Gearhardt, Ph.D., and professor of psychology at the University of Michigan.

"America's diet is now dominated by ultra-processed foods, many of which were shaped by the same corporate strategies that once hooked people on cigarettes. The result? Rising rates of obesity, diabetes and diet-related diseases, especially in children," added Gearhardt.

Food companies have consistently opposed efforts to regulate UPF and market and sell these products to California consumers without disclosing their potential harms.

Landmark UPF legislation

If signed into law, A.B. 1264 would establish a first-ever legal definition for UPF.

"Processed food can be part of a healthy diet, but Americans, especially our kids, are eating too many ultra-processed foods, leading to higher rates of cancer, cardiovascular disease and diabetes," said Scott Faber, EWG's senior vice president for government affairs.

"By identifying and phasing out the most harmful UPF from California's school food, A.B. 1264 will send the right signal to the companies selling food to our schools," added Faber. "EWG applauds Assemblymember Gabriel for once again making the health of California's kids his top priority."

The bill would also direct California's Office of Environmental Health Hazard Assessment, along with leading experts from the University of California, to identify a subcategory of "particularly harmful" UPF that should be phased out of school meals by 2032. This work would also consider whether:

* The product includes additives that are banned, restricted or subject to warnings in other jurisdictions

* Based on scientific research, the product or its ingredients are linked to cancer, cardiovascular or metabolic disease, developmental or reproductive harms, obesity, type 2 diabetes or other health harms

* The product or its ingredients contribute to food addiction

* The product is high in fat, sugar or salt.

California schools are projected to provide over 1 billion meals this school year. A.B. 1264 would protect students from harmful, addictive chemicals and ensure that all children - including those from disinvested backgrounds - can access healthy and nutritious foods.

"Healthy school meals are the fastest, most powerful way to create a healthier future for our children and our nation," said Nora LaTorre, CEO of Eat Real.

California leads the way

California is changing the national conversation about food safety and school nutrition. With strong bipartisan support, over the past two years the state has enacted two Gabriel-authored landmark food laws.

The California School Food Safety Act, signed into law in 2024, bans six harmful food dyes from being served in public schools. It followed a 2023 state law banning the manufacture, distribution or sale of food containing the chemicals Red Dye No. 3, propyl paraben, brominated vegetable oil and potassium bromate.

California has long been a bellwether state for public health protections. Now similar actions are sweeping the country, with food chemical bills introduced, debated and in some cases enacted in states from Arizona to Vermont, including Illinois, Pennsylvania and New York.

Gov. Gavin Newsom issued an executive order in January directing California agencies to look for new ways to

minimize the harms of ultra-processed food consumption and reduce the purchase of soda, candy and other types of UPF, including foods that contain artificial dye.

"Poor nutrition in childhood, predominantly due to processed foods, which are high in added sugars and low in nutrient quality, is a major and modifiable factor contributing to life-long risk for chronic diseases, including obesity, Type 2 diabetes, fatty liver disease and heart disease and also affects learning and classroom performance," said Michael Goran, Ph.D., and program director for nutrition and obesity at Children's Hospital Los Angeles.

Goran is also professor and vice chair for research with the department of pediatrics at Keck School of Medicine of the University of Southern California.

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

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Original text here: https://www.ewg.org/news-insights/news-release/2025/04/california-assembly-committee-advances-bill-protect

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